Class 2: CPC — The Complete Fast-Track

Code of Civil Procedure, 1908 | 10 modules with cases and memory tricks | Law Refresher Course, Phase 1

Before you cite a case in court, check the citation on SCC Online, Manupatra or Indian Kanoon.

Module 1: Foundation (Sections 1–9)

- **Sections vs Orders.** Sections are the law and only Parliament can amend them. Orders are procedure, and High Courts can amend them (S.122). Where they conflict, the Section wins.
- **Decree, Judgment, Order:** S.2(2), 2(9), 2(14).
- **S.9:** civil courts try every suit of a civil nature unless it is expressly or impliedly barred.

Case	Point
Dhulabhai v. State of M.P. (1968)	Exclusion of civil court jurisdiction is not readily inferred. The civil court can still step in if a tribunal acted without jurisdiction or ignored natural justice.
Kiran Singh v. Chaman Paswan (1954)	A decree passed without **inherent** jurisdiction is a **nullity** and can be challenged even in execution.

Trick: "The civil court is the default doctor. A specialist (tribunal) takes over only if the law clearly says so."

Module 2: Bars to a Suit (S.10, S.11, O.2 R.2)

1. Res Sub Judice (S.10): stay of the later suit

The **later** suit is **stayed** (not dismissed) when all of these apply:

1. Two suits are pending.
2. The matter in issue is **directly and substantially the same**.
3. The parties are the same, or litigate under the same title.
4. The earlier suit is in a competent court in India.

Case	Point
Aspi Jal v. Khushroo Rustom Dadyburjor (2013, SC)	S.10 applies only when the **entire** subject matter is the same, so that the decision in the first suit would operate as res judicata in the second.
Indian Bank v. Maharashtra State Co-op Marketing Federation (1998, SC)	S.10 bars the **trial** of the later suit, not its **filing**.

2. Res Judicata (S.11): bar on re-deciding a matter

Essentials (mnemonic: **"SAME-COMP-FINAL"**):

1. **Same** matter, directly and substantially in issue
2. **Same** parties, or those claiming under them
3. **Same** title
4. **Competent** court
5. Heard and **finally** decided

Constructive res judicata (Explanation IV): a point that *might and ought* to have been raised is treated as raised and decided.

Case	Point
Satyadhyan Ghosal v. Deorajin Debi (1960)	Res judicata applies between **different stages of the same suit**.
Daryao v. State of U.P. (1961)	Res judicata applies to **writ petitions** too.
Forward Construction Co. v. Prabhat Mandal (1986)	Constructive res judicata applies to public interest litigation.

	S.10 Res Sub Judice	S.11 Res Judicata
Status of first matter	**Pending**	**Decided**
Effect	Later suit stayed	Later suit barred
Purpose	Avoid conflicting decisions	Finality of decisions

Trick: "S.10: wait, the case is still cooking. S.11: done, the case is already served."

3. Order II Rule 2: the whole claim at once

If a plaintiff leaves out part of a claim arising from the **same cause of action** without the court's leave, they cannot sue for it later.

- *Gurbux Singh v. Bhooralal* (1964)
- *Virgo Industries v. Venturetech* (2013): O.2 R.2 applies only where both claims arise from the **same cause of action**.

Hall example: you sue a client for unpaid hall rent but not for the furniture damage. You cannot file a second suit for the furniture damage.

Module 3: Where to Sue (S.15–21)

Section	Rule
S.15	File in the court of the **lowest grade** competent to try the suit.
S.16	Suits about **immovable property** go where the property is situated.
S.17	If the property is spread across jurisdictions, sue in any of them.
S.19	For a wrong to a person or movables, sue where the wrong happened **or** where the defendant resides.
S.20	All other suits go where the defendant resides or works, or where the cause of action arose, **wholly or in part**.
S.21	Objections to territorial or pecuniary jurisdiction must be raised at the **first instance**. Otherwise they are waived, unless there was a failure of justice.

Case	Point
ABC Laminart v. A.P. Agencies (1989)	An exclusive jurisdiction clause is valid **only if** the chosen court already has jurisdiction.
Swastik Gases v. Indian Oil (2013)	Even without words like "only" or "exclusive", the intention to exclude other courts can be inferred.
Patel Roadways v. Prasad Trading (1991)	A company can be sued where its **subordinate office** is, **if** the cause of action arose there.

Trick: "Land: sue where the land is. Wrong: where it happened or where the defendant lives. Everything else: the defendant's home or where the trouble started."
Practical point: put an exclusive jurisdiction clause in your hall booking agreement, e.g. "Courts at Nandyal alone shall have jurisdiction."

Module 4: Parties and Pleadings (Orders I, VI, VII, VIII)

Parties (Order I)

- **Necessary party:** no effective decree can be passed without them.
- **Proper party:** their presence helps the court decide completely.
- **O.1 R.10:** the court can add or strike out parties at any stage.
- **O.1 R.8:** a representative suit is one person suing or being sued on behalf of many with the same interest.
- *Mumbai International Airport v. Regency Convention Centre* (2010): the plaintiff is the **dominus litis**, the master of the suit, but the court can add necessary parties.

Pleadings (Order VI)

- Plead **facts, not evidence or law** (O.6 R.2).
- **O.6 R.17, amendment:** amendments should be allowed liberally before trial. After trial begins, the party must show **due diligence**.

Case	Point
Revajeetu Builders v. Narayanaswamy (2009)	Six factors for allowing an amendment.
LIC v. Sanjeev Builders (2022, SC)	**Latest** summary of amendment principles. Allow liberally unless the amendment causes injustice, changes the nature of the suit, or seeks to add a time-barred claim.

Plaint (Order VII)

O.7 R.11, rejection of plaint (mnemonic: **"C-U-S-B-D-N"**):

- (a) No **Cause** of action
- (b) **Undervalued**, and not corrected after the court's direction
- (c) Insufficient **Stamp** (court fee), not paid after the court's direction
- (d) **Barred** by law, e.g. by limitation
- (e) Not filed in **Duplicate**
- (f) **Non**-compliance with O.7 R.9 (copies and summons fees)

Case	Point
T. Arivandandam v. T.V. Satyapal (1977)	A plaint that creates an **illusion** of a cause of action through clever drafting should be rejected at the threshold.
Saleem Bhai v. State of Maharashtra (2003)	Only the **plaint averments** are examined. The written statement is irrelevant at this stage.
Dahiben v. Arvindbhai Kalyanji Bhanusali (2020, SC)	Comprehensive restatement of O.7 R.11. A plaint that is plainly barred by limitation must be rejected.

Return of plaint (O.7 R.10): when the court lacks jurisdiction, the plaint is **returned** to be filed in the proper court, not rejected.

Written Statement (Order VIII)

Type of suit	Time limit	Nature of the limit
Ordinary suit	30 days, extendable to **90**	**Directory** (*Kailash v. Nanhku*, 2005)
Commercial suit	**120 days**	**Mandatory**: no written statement after that (*SCG Contracts v. K.S. Chamankar*, 2019)

- **Set-off (O.8 R.6)** is limited to an ascertained sum of money.
- **Counter-claim (O.8 R.6A)** can be any claim, and is treated as a plaint.

Trick: "Ordinary suit: 90 days, the court may forgive. Commercial suit: 120 days, no forgiveness."

Module 5: Trial Stage (Orders V, IX, X, XI, XIV–XX)

Appearance and default (Order IX)

Situation	Result
Neither party appears	Suit dismissed (R.3). Can be refiled or restored (R.4).
Plaintiff absent, defendant present	Suit dismissed (R.8). Restoration under **R.9** within **30 days**.
Defendant absent	**Ex parte** hearing (R.6). Ex parte decree set aside under **R.13** within **30 days**.

To set aside an ex parte decree under **O.9 R.13**, show either that the summons was not duly served, or that there was **sufficient cause** for not appearing. *G.P. Srivastava v. R.K. Raizada* (2000): "sufficient cause" must be read **liberally**.

Trick: "R.9 restores the Plaintiff's suit. R.13 rescues the Defendant from an ex parte decree."

Other trial points

- **O.10:** the court examines the parties and refers the dispute to **ADR under S.89**. *Salem Advocates Bar Assn. v. UOI* (2005) upheld the amendments; *Afcons Infrastructure v. Cherian Varkey* (2010) explained which cases suit ADR.
- **O.11:** discovery and inspection. Commercial suits have a stricter disclosure regime.
- **O.14:** framing of issues. **Issues of law** such as jurisdiction or limitation may be decided first.
- **O.17 R.1:** a maximum of **3 adjournments** per party.
- **O.18 R.4:** chief examination is given by **affidavit**. Cross-examination happens in court or before a commissioner.
- **O.20 R.1:** judgment within **30 days** of the hearing ending, extendable to **60**.

Module 6: Interim Reliefs (Orders XXXVIII–XL, S.94–95, S.148A)

Temporary injunction (O.39 R.1 and R.2)

The **triple test** (mnemonic: **"P-B-I"**):

1. **P**rima facie case
2. **B**alance of convenience
3. **I**rreparable injury

Case	Point
Dalpat Kumar v. Prahlad Singh (1992)	Established the triple test.
Wander Ltd. v. Antox (1990)	An appellate court should not interfere with the trial court's discretion unless it is arbitrary or perverse.

- **O.39 R.3:** for an ex parte injunction, reasons must be recorded and notice served on the other side soon after.
- **O.39 R.3A:** the application must be disposed of within **30 days**.
- **O.39 R.2A:** breach of an injunction leads to attachment of property and up to **3 months** in civil prison.
- **O.38:** arrest or attachment **before judgment**, when the defendant is about to abscond or dispose of property.
- **O.40:** appointment of a **receiver**.
- **S.148A, Caveat:** entitles you to notice before any ex parte order. **Valid for 90 days.**

Trick: "File a caveat before you sleep. The other side cannot get an ex parte order behind your back for 90 days."

Module 7: Special Suits

Provision	Topic	Key point
S.80	Suits against the **Government**	A **2-month** notice is required. Under S.80(2) a suit for urgent relief can be filed with the court's leave.
O.37	**Summary suits** on negotiable instruments and written contracts	The defendant must get **leave to defend**. *IDBI Trusteeship v. Hubtown* (2016) revised the leave-to-defend principles.
O.32	Minors	A next friend sues on the minor's behalf; a guardian ad litem defends.
O.33	Indigent persons	The suit can proceed without paying court fee.
O.35	Interpleader	Used when two people claim the same property from you.
Commercial Courts Act, S.12A	**Pre-institution mediation**	*Patil Automation v. Rakheja Engineers* (2022): mandatory unless urgent relief is sought; a suit filed without it is rejected.

Trick: for an O.37 summary suit, "No leave, no defence: the decree follows."

Module 8: Death, Withdrawal and Compromise (Orders XXII, XXIII)

- **O.22:** legal representatives must be substituted within **90 days** (Limitation Act, Art.120), otherwise the suit **abates automatically**. An application to set aside the abatement must be filed within **60 days** after that (Art.121).
- **O.23 R.1:** the plaintiff can withdraw the suit. Without the court's permission, a fresh suit is **barred**.
- **O.23 R.3:** a **lawful compromise** must be recorded in writing and signed.
- **O.23 R.3A:** no separate suit lies to challenge a compromise decree. The challenge must be made in the same court.

Module 9: Appeals, Reference, Review, Revision (S.96–115, Orders XLI–XLVII)

Remedy	Provision	Where it lies	Time limit	Grounds
First appeal	S.96, O.41	District Court or High Court	30 days (District Court) or 90 days (High Court)	Facts **and** law
Second appeal	S.100	High Court only	90 days	Only a **substantial question of law**
Appeal from orders	S.104, O.43	Appellate court	30 or 90 days	Only orders listed in O.43
Review	S.114, O.47	**Same** court	30 days	Error apparent on the face of the record, new evidence, or other sufficient reason
Revision	S.115	High Court	—	Jurisdictional error only
Reference	S.113, O.46	High Court	—	Doubt on the validity of a statute

- **S.96(4):** no appeal in Small Cause suits up to ₹10,000, except on a question of law.
- **S.102:** no second appeal in money suits up to **₹25,000**.

Case	Point
Santosh Hazari v. Purushottam Tiwari (2001)	The first appellate court must deal with the trial court's reasoning. It cannot simply affirm.
Hero Vinoth v. Seshammal (2006)	Explains what counts as a "substantial question of law".
Kamlesh Verma v. Mayawati (2013)	Review is **not** an appeal in disguise.
Radhey Shyam v. Chhabi Nath (2015)	Judicial orders of civil courts can be challenged only under **Art. 227**, not by certiorari under Art. 226.

Trick: Appeal = a higher court, a fresh look. Review = the same court corrects itself. Revision = the High Court checks jurisdiction only. Reference = the lower court asks the High Court for guidance.

Module 10: Execution (S.36–74, Order XXI)

- **S.38:** a decree is executed by the court that passed it, or by a court to which it is transferred (S.39).
- **S.47: all questions** between the parties about execution are decided **by the executing court**. A separate suit is not allowed.
- **S.51, modes of execution:** delivery of property; attachment and sale; arrest and detention; appointment of a receiver.
- **S.58, civil prison:** decree above ₹5,000, up to **3 months**; decree between ₹2,000 and ₹5,000, up to **6 weeks**; decree up to ₹2,000, **no detention**.

- **S.60:** property exempt from attachment includes necessary clothing, tools of artisans, and the first ₹1,000 plus two-thirds of the rest of a salary.
- **O.21 R.97–101:** a third party who obstructs possession has their claim decided **within the execution** itself (*Silverline Forum v. Rajiv Trust*, 1998).
- **S.144, Restitution:** if a decree is reversed, the amount paid must be returned.
- **Limitation:** a decree can be executed within **12 years** (Art.136).

Recent case	Point
Rahul S. Shah v. Jinendra Kumar Gandhi (2021, SC)	14 directions to stop delays in execution. Execution must be completed within **6 months**, and the court should ascertain third-party interests at the stage of the suit itself.
Periyammal v. V. Rajamani (2025, SC)	The Court called the pendency of execution petitions alarming, directed High Courts to ensure they are disposed of within 6 months, and to monitor them.

Trick: "A decree without execution is like a cheque without a bank."

Master Time-Limit Chart (memorise this)

Action	Time limit
Written statement (ordinary suit)	30 days, up to 90
Written statement (commercial suit)	120 days, strict
S.80 notice to Government	2 months
Caveat validity	90 days
Setting aside an ex parte decree (O.9 R.13)	30 days
Restoration of a suit (O.9 R.9)	30 days
Appeal to District Court	30 days
Appeal to High Court	90 days
Review	30 days
Substitution of legal representatives	90 days
Setting aside abatement	60 days
Execution of a decree	12 years
Pronouncing judgment	30 days, up to 60
Adjournments	3 maximum

CPC Comprehensive Test (50 marks)

Part A: one-line answers (1 mark each)

1. Which section deals with res sub judice?
2. What is the validity period of a caveat?
3. Name the triple test for a temporary injunction.
4. Within what time must a written statement be filed in a commercial suit?
5. Which section bars a second appeal in money suits up to ₹25,000?
6. Which case held that a decree passed without inherent jurisdiction is a nullity?
7. Under which Order and Rule is a plaint rejected?
8. What is the limitation period for executing a decree?
9. Which provision makes pre-institution mediation mandatory in commercial suits?
10. Who decides questions relating to execution between the parties, and under which section?

Part B: short notes (4 marks each)

11. Distinguish S.10 from S.11, citing one case each.
12. Constructive res judicata, with an example.
13. The grounds for rejecting a plaint, and the *Dahiben* (2020) case.
14. The directions in *Rahul S. Shah v. Jinendra Kumar Gandhi* (2021).
15. Review vs Revision vs Appeal.

Part C: practical problem (20 marks)

16. A caterer working at your **Sampradaya Hall** event causes ₹3 lakh of damage. You get an ex parte decree in Nandyal. The caterer now lives in Hyderabad and has transferred their van to a relative.
    - (a) How will you execute the decree in Hyderabad? (5 marks)
    - (b) What can you do about the van transfer? (5 marks)
    - (c) The caterer applies to set aside the ex parte decree after 45 days. What is your objection? (5 marks)
    - (d) What should you have done **before** judgment to protect the claim? (5 marks)